

MOTION FOR AN ORDER DISMISSING THE CHARGES UNDER W. VA. CODE SEC. 17C-5-2B(C)

IN THE OF
(NAME OF THE COURT THAT DEFERRED THE PROCEEDINGS AND IMPOSED PROBATION,
AND ITS COUNTY)

STATE OF WEST VIRGINIA,

v.

Maria-Alejandra O'Shaughnessy-Whitfield,
DEFENDANT.

Case No.

MOTION FOR AN ORDER DISMISSING THE CHARGES UNDER W. VA. CODE Sec. 17C-5-2b(c)

1. The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, was charged with a first offence under W. Va. Code Sec. 17C-5-2(e) in this case, notified the court of the intention to participate in the deferral, and was placed on probation under W. Va. Code Sec. 17C-5-2b without entry of a judgment of guilt, conditioned on successful completion of the Motor Vehicle Alcohol Test and Lock Program under W. Va. Code Sec. 17C-5A-3a.

2. The defendant states the following from the court record and the Division of Motor Vehicles record (nothing on these lines is written for you):

Date of arrest on the deferred charge:
.....

Name of the agency that made the arrest:
.....

Date of the order deferring proceedings and imposing probation:
.....

Length of the probation term the court imposed:
.....

Date of successful completion of the Motor Vehicle Alcohol Test and Lock Program:
.....

3. The defendant has satisfactorily completed the Motor Vehicle Alcohol Test and Lock Program and has complied with all of the conditions of the program, as W. Va. Code Sec. 17C-5-2b(c) requires. Filed in support of this motion are the defendant's affidavit and the certification of the Division of Motor Vehicles that the program was successfully completed.

4. The defendant therefore moves the court for an order dismissing the charges. Under W. Va. Code Sec. 17C-5-2b(c), the prosecuting attorney has 30 days after service of this motion to advise the judge of any objections; in the absence of objections within that period, the court shall dismiss.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this motion personally. Nothing on this page is signed or dated for the defendant.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

DATE OF BIRTH: 1968-12-31

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Morgantown, West Virginia
26501-2214

TELEPHONE: (681) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:unit:WV:wv_oui_deferral_expungement:wv-oui-deferral-unit-1-motion-to-dismiss ;
obligation:unit:WV:wv_oui_deferral_expungement:wv-oui-deferral-unit-2-application-to-expunge

DEFENDANT'S AFFIDAVIT IN SUPPORT OF THE MOTION TO DISMISS

IN THE OF
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STATE OF WEST VIRGINIA,

v.

Maria-Alejandra O'Shaughnessy-Whitfield,
DEFENDANT.

Case No.

DEFENDANT'S AFFIDAVIT IN SUPPORT OF THE MOTION TO DISMISS

1. I, Maria-Alejandra O'Shaughnessy-Whitfield, am the defendant in this case and make this affidavit in support of my motion for an order dismissing the charges under W. Va. Code Sec. 17C-5-2b(c), which requires the motion to be supported by the defendant's affidavit.

2. I successfully completed the Motor Vehicle Alcohol Test and Lock Program on the date stated below, and I complied with the conditions of the program:

Date of successful completion of the program, as the Division of Motor Vehicles certification states it:
.....

3. Your own statement of your completion of the program and your compliance with its conditions, in your own words (state only what you know first-hand; nothing on these lines is written for you):

.....
.....
.....

I swear or affirm that the statements above are true.

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obligation:unit:WV:wv_oui_deferral_expungement:wv-oui-deferral-unit-2-application-to-expunge

SIGNATURE OF AFFIANT

DATE

(You sign this affidavit before a notary public or other officer authorized to administer oaths, and not before. The block below is completed by that officer, never by you and never by this packet.)

Taken, subscribed and sworn to before me this day of, 20.....

Officer authorized to administer oaths

APPLICATION FOR AN ORDER EXPUNGING RECORDS UNDER W. VA. CODE SEC.
17C-5-2B(G)

IN THE OF
(NAME OF THE COURT THAT DEFERRED THE PROCEEDINGS AND IMPOSED PROBATION,
AND ITS COUNTY)

STATE OF WEST VIRGINIA,

v.

Maria-Alejandra O'Shaughnessy-Whitfield,
DEFENDANT.

Case No.

APPLICATION FOR AN ORDER EXPUNGING ALL OFFICIAL RECORDS OF THE ARREST,
TRIAL AND CONVICTION UNDER W. VA. CODE Sec. 17C-5-2b(g)

1. The applicant, Maria-Alejandra O'Shaughnessy-Whitfield, was placed on probation under W. Va. Code Sec. 17C-5-2b in this case, and the charges were dismissed and discharged under Sec. 17C-5-2b(c) without adjudication of guilt.

2. The applicant states the following from the court record (nothing on these lines is written for you):

Date of the order of dismissal and discharge:

.....

Date the probation term expired, as the court or the supervising probation office confirms it:

.....

3. Not less than one year has elapsed since the expiration of the term of probation, which is the period W. Va. Code Sec. 17C-5-2b(g)(1) requires. The clock runs from the expiration of probation, not from the dismissal; the supporting timeline filed with this application sets out the computation.

4. The applicant has not previously been convicted of a felony in any jurisdiction. (Sign this application only if that is true: Sec. 17C-5-2b(g)(1) bars this motion outright to any person previously convicted of a felony.)

5. The applicant therefore applies for an order expunging all official records of the arrest, trial and conviction in this matter, EXCEPT those records maintained by the Division of Motor Vehicles, which W. Va. Code Sec. 17C-5-2b(g) and Sec. 61-11-25(a) expressly place beyond the reach of this order. No Division of Motor Vehicles record is sought or reached.

6. Under W. Va. Code Sec. 17C-5-2b(g), objections may be filed within 30 days after service of this

application. If objections are filed, the court holds a hearing; if the court determines the applicant was not guilty of any serious or repeated violation of the conditions of probation, it shall order the expungement.

DATE SIGNATURE OF APPLICANT

(The applicant signs and dates this application personally.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

DATE OF BIRTH: 1968-12-31

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Morgantown, West Virginia
26501-2214

TELEPHONE: (681) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:unit:WV:wv_ DUI_deferral_expungement:wv-dui-deferral-unit-1-motion-to-dismiss ;
obligation:unit:WV:wv_ DUI_deferral_expungement:wv-dui-deferral-unit-2-application-to-expunge

SUPPORTING TIMELINE FOR THE APPLICATION TO EXPUNGE

Filed with the application of Maria-Alejandra O'Shaughnessy-Whitfield for an order under W. Va. Code Sec. 17C-5-2b(g).

This timeline sets out the sequence the statute fixes and the one computation the application turns on. Every date is copied from the court record or the probation office's written confirmation, never from memory, and nothing on these lines is written for you.

Date of the order deferring proceedings and imposing probation:

.....

Length of the probation term the court imposed:

.....

Date the probation term expired:

.....

Date of the order of dismissal and discharge under Sec. 17C-5-2b(c):

.....

Earliest date the application to expunge may be filed - one year after the probation term expired:

.....

THE COMPUTATION THAT MATTERS. W. Va. Code Sec. 17C-5-2b(g)(1) makes the one-year period begin to run immediately upon the expiration of the term of probation. It does not run from the dismissal. If the two dates differ, use the probation expiry date.

Route: obligation:unit:WV:wv_duit_deferral_expungement:wv-dui-deferral-unit-1-motion-to-dismiss ;
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CERTIFICATE OF SERVICE ON THE PROSECUTING ATTORNEY

IN THE OF
(NAME OF THE COURT THAT DEFERRED THE PROCEEDINGS AND IMPOSED PROBATION,
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STATE OF WEST VIRGINIA,

v.

Maria-Alejandra O'Shaughnessy-Whitfield,
DEFENDANT.

Case No.

CERTIFICATE OF SERVICE ON THE PROSECUTING ATTORNEY

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that on the date stated below I served a true copy of the filing named below, with its supporting papers, on the prosecuting attorney named below.

Title of the filing served with this certificate (the Sec. 17C-5-2b(c) motion, or the Sec. 17C-5-2b(g) application - a separate certificate is completed for each):

.....

Name and office mailing address of the prosecuting attorney served:

.....

.....

DATE OF SERVICE

SIGNATURE

This page is not proof of service and does not say that anything has been served. It is completed and signed when the copy actually goes out. A date or a signature written before the copy goes out would be false. The 30-day objection window on each unit runs from service, so keep a copy of the completed certificate.

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obligation:unit:WV:wv_oui_deferral_expungement:wv-oui-deferral-unit-2-application-to-expunge

RECORDS CHECKLIST

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

Each document below is named, with the office that issues it. This packet never receives, inspects or authenticates any of them - you obtain each one yourself and attach or keep it as stated.

ONE. Certification of the Division of Motor Vehicles that you successfully completed the Motor Vehicle Alcohol Test and Lock Program. Issued by the West Virginia Division of Motor Vehicles. W. Va. Code Sec. 17C-5-2b(c) requires the motion to dismiss to be supported by this certification, so it must be in hand and attached BEFORE the motion is filed.

TWO. Certified copy of the order deferring proceedings and imposing probation. Issued by the office of the court that entered it. It carries the probation term the one-year expungement clock is measured from.

THREE. Certified copy of the order of dismissal and discharge. Issued by the office of the court that entered it. Needed at the second stage, where the dismissal has already been entered.

FOUR. Written confirmation of the date your probation term expired. Issued by the supervising probation office, or by the office of the court. This date, not the dismissal date, starts the one-year period for the application to expunge.

Route: obligation:unit:WV:wv_oui_deferral_expungement:wv-oui-deferral-unit-1-motion-to-dismiss ;
obligation:unit:WV:wv_oui_deferral_expungement:wv-oui-deferral-unit-2-application-to-expunge

FILING INSTRUCTIONS

This packet is prepared for clearing a West Virginia first-offence DUI that was deferred and dismissed after the Motor Vehicle Alcohol Test and Lock Program, under W. Va. Code Sec. 17C-5-2b(c) and (g).

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

THE SEQUENCE, AND ITS TWO CLOCKS

This route has two stages, filed in the same court - the court that deferred the proceedings and imposed probation - and the second cannot be reached until the first has taken effect:

STAGE ONE. Once you have satisfactorily completed the Motor Vehicle Alcohol Test and Lock Program, file the MOTION TO DISMISS with your affidavit and the Division of Motor Vehicles certification, and serve a copy on the prosecuting attorney. The prosecuting attorney has 30 days after service to advise the judge of objections; if none are filed, the court shall dismiss. The dismissal and discharge is without adjudication of guilt and is not a conviction for purposes of disqualifications or disabilities.

STAGE TWO. No sooner than ONE YEAR after your probation term EXPIRED - measured from the probation expiry, not from the dismissal - file the APPLICATION TO EXPUNGE with the supporting timeline, and serve a copy on the prosecuting attorney. Objections may be filed within 30 days after service; the court holds a hearing only if objections are filed.

WHAT THE ORDER NEVER REACHES. No Division of Motor Vehicles record may be expunged by virtue of an order entered under this section (W. Va. Code Sec. 61-11-25(a)). The criminal record can be cleared; the driving record cannot. If the driving record is your chief concern, this route will not help it.

THE HARD LIMITS, FROM THE STATUTE.

- Only one discharge and dismissal is available under Sec. 17C-5-2b, ever (Sec. 17C-5-2b(e)).
- A person previously convicted of a felony may not make the Sec. 17C-5-2b(g) expungement motion at all.
- Under Sec. 17C-5-2b(h), a person whose case is disposed of under the section must pay the court costs that could be assessed against a person convicted of the offence, and payment may have been made a condition of probation.
- Sec. 17C-5-2b charges no fee for either motion. Whether the court's office collects any filing cost on these papers is not stated by any record this packet is built from - ask the office of the court that deferred the proceedings before filing.

DISCLOSURE PROTECTION. After dismissal and discharge, you are not guilty of perjury or false swearing by reason of failing to disclose the arrest or trial, EXCEPT in response to an inquiry made in connection with a subsequent offence under W. Va. Code Sec. 17C-5-2.

WHEN TO STOP AND GET A LAWYER INSTEAD OF FILING

- The charge is live and you have not yet notified the court of an intention to participate in a deferral: that 30-day window is charge-stage criminal defence, it closes quickly, and it is outside this packet entirely.
- You hold a commercial driver's licence or operate commercial motor vehicles.

- A court entered an order finding that you refused the secondary chemical test.
- Your licence had previously been revoked for a same-elements offence in any jurisdiction.
- Any other offence under the serious traffic offences article was charged in the same prosecution.
- You have any prior felony conviction.
- Anyone has alleged a serious or repeated violation of your probation conditions, or the prosecutor objects and the court sets a hearing.
- You did not complete, or were removed from, the test and lock program.
- You completed the program years ago but no order of dismissal was ever entered: whether the Sec. 17C-5-2b(c) motion is still the right vehicle for a stale file is an unresolved question this packet does not answer.
- Firearm rights, immigration, professional licensing, commercial driving, or federal, tribal, military or out-of-state records questions.

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